

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
DESTINY MAYA and SHAINA FRAZIER,

Plaintiff

- against -

THE CITY OF NEW YORK,
POLICE OFFICER JOSE RIVERA (shield # 24650),
POLICE OFFICER MARCOS MONEGRO-SANTOS
(shield # 16268),

Defendants.

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Index No. _____
Purchased 1-3-23

Plaintiff designates Bronx
County as the place of trial

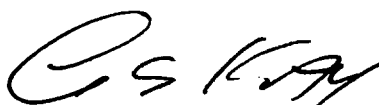
The basis of the venue is
where the tort arose

SUMMONS

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
January 3, 2023



THE LAW OFFICES OF ELLIOT S. KAY
Attorney for Plaintiffs
295 Madison Avenue, 12th Floor
New York, NY 10017
(212) 939-7251

Defendant's Address:
**CORPORATION COUNSEL OF THE
CITY OF NEW YORK**
100 Church Street
New York, New York 10007

SUPREME COURT OF THE STATE OF NEW YORK
BRONX COUNTY

-----X
DESTINY MAYA and SHAINA FRAZIER,

Plaintiff

Index No.

Verified Complaint

- against -

THE CITY OF NEW YORK,
POLICE OFFICER JOSE RIVERA (shield # 24650),
POLICE OFFICER MARCOS MONEGRO-SANTOS
(shield # 16268),

Defendants.

-----X

Plaintiffs DESTINY MAYA and SHAINA FRAZIER, by their attorneys, THE LAW
OFFICES OF ELLIOT S. KAY, by ELLIOT S. KAY, principal, complaining of the Defendants,
respectfully shows to this Court and alleges the following upon information and belief:

PARTIES

1. At all times hereinafter mentioned, Plaintiffs DESTINY MAYA and SHAINA FRAZIER were residents of the State of New York.
2. At all times hereinafter mentioned, Defendant THE CITY OF NEW YORK ("CITY"), was and still is a municipal corporation organized and existing under and by virtue of the laws of the State of New York.
3. At all times hereinafter mentioned, the NEW YORK CITY POLICE DEPARTMENT ("POLICE"), was and is an agency of Defendant CITY.
4. At all times hereinafter mentioned, Defendant, POLICE OFFICER JOSE RIVERA (shield # 24650) ("P.O. RIVERA"), was and is a police officer employed by Defendants.

5. At all times hereinafter mentioned, Defendant, POLICE OFFICER MARCOS MONEGRO-SANTOS (shield # 16268)(P.O. MONEGRO-SANTOS) was and is a police officer employed by Defendants.

DESTINY MAYA:

BACKGROUND

6. On May 15, 2021, at approximately 2:30 a.m., in the vicinity of 1242 Morris Avenue in Bronx County, without just cause or provocation, Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, approached Plaintiff DESTINY MAYA and demanded that Plaintiff speak with Emergency Medical Services (“EMS”) who were at the scene.

7. Plaintiff DESTINY MAYA complied and explained to EMS and POLICE that she did not need medical attention, did not desire to go to the hospital and that she was over the age of 18 years old.

8. As Plaintiff DESTINY MAYA began to walk towards her mother who was standing nearby, the Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, grabbed Plaintiff DESTINY MAYA by her neck, choked her and slammed her to the ground. Next, Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, struck Plaintiff DESTINY MAYA about her head and body.

9. Defendants violently handcuffed Plaintiff. Plaintiff DESTINY MAYA was taken to a local hospital and then to a police precinct in Bronx County, where she was searched and forced to remain inside of a holding cell.

10. Thereafter, Plaintiff DESTINY MAYA was taken to Bronx County Central Booking. Plaintiff remained incarcerated until her release from custody on or about May 16, 2021.

11. Defendants intentionally and falsely accused Plaintiff DESTINY MAYA of having committed the crimes of Assault in the Second Degree and related charges.

12. On or about May 15, 2021, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced.

13. Plaintiff had to defend against false charges until the criminal matter was terminated in her favor on October 26, 2021.

SHAINA FRAZIER:

14. On May 15, 2021, at approximately 2:30 a.m., in the vicinity of 1242 Morris Avenue in Bronx County, without just cause or provocation, Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, tackled Plaintiff SHAINA FRAZIER and slammed her to the ground. Next, Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, punched, kicked and struck Plaintiff SHAINA FRAZIER about her head and body.

15. The Defendants violently handcuffed Plaintiff SHAINA FRAZIER. Plaintiff was taken to a local hospital and then to a police precinct in Bronx County, where Plaintiff SHAINA FRAZIER was searched and forced to remain inside of a holding cell.

16. Thereafter, Plaintiff SHAINA FRAZIER was taken to Bronx County Central Booking. Plaintiff SHAINA FRAZIER remained incarcerated until her release from custody on or about May 16, 2021.

17. Defendants intentionally and falsely accused Plaintiff SHAINA FRAZIER of having committed the crimes of Assault in the Second Degree and related charges.

18. On or about May 15, 2021, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff SHAINA FRAZIER commenced.

19. Plaintiff SHAINA FRAZIER had to defend against false charges until the criminal

matter was terminated in her favor on October 26, 2021.

PROCEDURAL POSTURE

20. On November 1, 2021, Plaintiff DESTINY MAYA served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

21. On November 18, 2021, Plaintiff SHAINA FRAZIER served a Notice of Claim in writing sworn to on her behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendants of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

22. More than thirty days have elapsed since service of said notices and Defendant CITY has failed to pay or adjust these claims.

23. A 50-H hearing has been held for each Plaintiff.

24. This action has been commenced within one year and ninety days after the cause of action accrued.

25. Plaintiffs have duly complied with all conditions precedent to the commencement of this action.

DESTINY MAYA:

FIRST CAUSE OF ACTION FOR DESTINY MAYA:
MALICIOUS PROSECUTION

26. Paragraphs 1-25 are incorporated by reference as though fully set forth herein.

27. In arresting Plaintiff DESTINY MAYA, the Defendants acted with malice. The

Defendants lacked probable cause to arrest Plaintiff DESTINY MAYA. The Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, provided incomplete and misleading information to the POLICE and the Bronx County District Attorney's Office to ensure that Plaintiff DESTINY MAYA would be arrested and prosecuted. P.O. RIVERA and P.O. MONEGRO-SANTOS falsely claimed to the Bronx County District Attorney's Office that Plaintiff DESTINY MAYA struck them and otherwise assaulted them. P.O. RIVERA and P.O. MONEGRO-SANTOS also created police documents/reports containing false and incomplete information—including, but not limited to, the allegation that Plaintiff DESTINY MAYA repeatedly struck P.O. RIVERA about his face.

28. All charges pending against Plaintiff DESTINY MAYA were dismissed and sealed upon the application of the Bronx County District Attorney on October 26, 2021.

29. As a result of being maliciously prosecuted by the Defendants, Plaintiff DESTINY MAYA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION FOR DESTINY MAYA:
SECTION 1983 CAUSE OF ACTION FOR FALSE ARREST AS AGAINST ALL
DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL
RIGHTS

30. Plaintiff DESTINY MAYA repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

31. Plaintiff DESTINY MAYA sues all Defendants in their capacities.

32. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and prosecution were all carried out without a warrant or probable cause.

33. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff DESTINY MAYA.

34. Prior to May 15, 2021, CITY and POLICE developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

35. It was the policy and/or custom of the POLICE and CITY to ignore exculpatory evidence before, during and after an arrest is made.

36. It was the policy and/or custom of the POLICE and CITY to force individuals to go to the hospital despite said individuals being emotionally stable and not being a threat to themselves or others.

37. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff DESTINY MAYA sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

38. As a result of the foregoing, Plaintiff DESTINY MAYA was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

THIRD CAUSE OF ACTION FOR DESTINY MAYA:
SECTION 1983 CAUSE OF ACTION FOR ASSAULT AS AGAINST ALL DEFENDANTS IN
VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL RIGHTS

39. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

40. Defendants P.O. RIVERA and P.O. MONEGRO-SANTOS caused Plaintiff DESTINY MAYA to apprehend and/or fear unfriendly contact by approaching Plaintiff DESTINY MAYA, grabbing her neck, choking her, slamming her to the ground and striking her about her head and body.

41. A reasonable person in the same circumstances as Plaintiff DESTINY MAYA would have apprehended and/or feared unfriendly contact.

42. Defendants P.O. RIVERA and P.O. MONEGRO-SANTOS assaulted Plaintiff and used excessive force in violation of Plaintiff's civil rights.

43. Due to the Defendants' assault on Plaintiff DESTINY MAYA, Plaintiff sustained substantial pain to her face, back, arms and legs.

44. Plaintiff DESTINY MAYA is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

FOURTH CAUSE OF ACTION FOR DESTINY MAYA:
EGREGIOUS CONDUCT

45. Plaintiff DESTINY MAYA repeats and re-alleges each and every allegation set forth above with the same force and effect as if set forth at length herein.

46. The acts of CITY, P.O. RIVERA and P.O. MONEGRO-SANTOS complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff DESTINY MAYA.

47. Plaintiff DESTINY MAYA was caused to sustain serious injuries and to suffer loss of liberty, pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

48. As a result of the foregoing, Plaintiff DESTINY MAYA seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

FIFTH CAUSE OF ACTION FOR DESTINY MAYA:
FAILURE TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S CIVIL
RIGHTS AS AGAINST ALL DEFENDANTS

49. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

50. As a result of the above actions, Defendant CITY, individually and/or vicariously, by and through its agents, servants and/or employees, failed to intervene to prevent or end the unlawful conduct inflicted upon Plaintiff DESTINY MAYA by Defendants P.O. RIVERA and P.O. MONEGRO-SANTOS.

51. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through their agents, servants, and/or employees, including P.O. RIVERA and P.O. MONEGRO-SANTOS, displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and excessive use of force.

52. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through its agents servants, and/or employees, including P.O. RIVERA and P.O. MONEGRO-SANTOS, acted intentionally, willfully, maliciously and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

53. By reason of the foregoing, Plaintiff DESTINY MAYA sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**SIXTH CAUSE OF ACTION FOR DESTINY MAYA:
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

54. Plaintiff DESTINY MAYA repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

55. The Defendants acted outrageously for their above-stated roles in the wrongful stop, assault, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff DESTINY MAYA.

56. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against Plaintiff DESTINY MAYA without any further investigation of the incident. Defendants knew or had reason to know that the criminal charges against Plaintiff DESTINY MAYA were false or without merit, yet they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

57. Defendants knew that their conduct would cause severe and extreme emotional harm to Plaintiff DESTINY MAYA and injury to her good name and reputation.

58. Said harm did in fact occur in this case, in that Plaintiff DESTINY MAYA was debilitated to the point where she still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of emotional good health.

59. By reason of the foregoing, Plaintiff DESTINY MAYA sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**SEVENTH CAUSE OF ACTION FOR DESTINY MAYA: PUNITIVE DAMAGES
AGAINST ALL DEFENDANTS**

60. Plaintiff DESTINY MAYA repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

61. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff's well-being, and were based on a lack of concern and ill-will towards Plaintiff.

62. Plaintiff DESTINY MAYA therefore demands punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

SHAINA FRAZIER

**EIGHTH CAUSE OF ACTION FOR PLAINTIFF SHAINA FRAZIER:
MALICIOUS PROSECUTION**

63. Paragraphs 1-62 are incorporated by reference as though fully set forth herein.

64. In arresting Plaintiff SHAINA FRAZIER, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff. The Defendants, including P.O. RIVERA and P.O. MONEGRO-SANTOS, provided incomplete and misleading information to the POLICE and the Bronx County District Attorney's Office to ensure that Plaintiff SHAINA FRAZIER would be arrested and prosecuted—including, but not limited to, false claims that Plaintiff SHAINA FRAZIER struck P.O. RIVERA about the face and body.

65. A criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff SHAINA FRAZIER commenced.

66. All charges pending against Plaintiff SHAINA FRAZIER were dismissed and sealed upon the application of the Bronx County District Attorney on October 26, 2021.

67. As a result of being maliciously prosecuted by the Defendants, Plaintiff SHAINA FRAZIER sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life and fear and intimidation for Plaintiff's safety.

NINTH CAUSE OF ACTION FOR SHAINA FRAZIER:
SECTION 1983 CAUSE OF ACTION FOR FALSE ARREST AS AGAINST ALL
DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES
CONSTITUTIONAL RIGHTS

68. Plaintiff repeats and re-alleges each and every allegation contained in the above paragraphs with full force and effect as if each were more fully set forth herein.

69. Plaintiff SHAINA FRAZIER sues all Defendants in their capacities.

70. The wrongful, unjustifiable and unlawful apprehension, arrest, detention, imprisonment and prosecution of Plaintiff SHAINA FRAZIER were all carried out without a warrant or probable cause.

71. At all relevant times, Defendants acted forcibly in apprehending, arresting and imprisoning Plaintiff SHAINA FRAZIER.

72. Prior to May 15, 2021, CITY and POLICE developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of Plaintiff's rights. It was the policy and/or custom of CITY to inadequately and improperly investigate citizens' complaints of police misconduct and actual acts of misconduct; and acts of misconduct were instead tolerated by CITY. It was the policy and/or custom of CITY to inadequately supervise and train its police officers, managers and employees including the Defendant officers, thereby failing to adequately discourage further constitutional violations on the part of their agents. Officers were encouraged and often harassed to make as many arrests as possible without concern for the validity of those arrests. The Defendants' agencies did not require appropriate in-service training or re-training of officers and employees who were known to have engaged in misconduct or who had shown a propensity to encourage rule violations for their own convenience at the expense of others.

73. It was the policy and/or custom of the POLICE and CITY to ignore exculpatory

evidence before, during and after an arrest is made.

74. It was the policy and/or custom of the POLICE and CITY to force individuals to go to the hospital despite said individuals being emotionally stable and not being a threat to themselves or others.

75. It was the policy and/or custom of the POLICE and CITY to assault, batter and arrest individuals that videotape or otherwise attempt to document police misconduct.

76. As a result of being falsely arrested and imprisoned by the Defendants, Plaintiff SHAINA FRAZIER sustained multiple injuries, including pain to her head, neck and shoulders. Plaintiff also sustained loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

77. As a result of the foregoing, Plaintiff SHAINA FRAZIER was damaged in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

TENTH CAUSE OF ACTION FOR SHAINA FRAZIER:
SECTION 1983 CAUSE OF ACTION FOR ASSAULT AS AGAINST ALL
DEFENDANTS IN VIOLATION OF PLAINTIFF'S UNITED STATES CONSTITUTIONAL
RIGHTS

78. Plaintiff repeats and re-alleges each and every allegation contained above as if fully set forth herein.

79. Defendants P.O. RIVERA and P.O. MONEGRO-SANTOS caused Plaintiff SHAINA FRAZIER to apprehend and/or fear unfriendly contact by approaching Plaintiff SHAINA FRAZIER, tackling her and punching and kicking her about her body.

80. A reasonable person in the same circumstances as Plaintiff SHAINA FRAZIER would have apprehended and/or feared unfriendly contact.

81. Defendants P.O. RIVERA and P.O. MONEGRO-SANTOS assaulted Plaintiff and used

excessive force in violation of Plaintiff's civil rights.

82. Due to the Defendants' assault on Plaintiff SHAINA FRAZIER, Plaintiff sustained substantial pain to her neck, back and shoulders.

83. Plaintiff SHAINA FRAZIER is entitled to damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

ELEVENTH CAUSE OF ACTION FOR SHAINA FRAZIER:
EGREGIOUS CONDUCT

84. Plaintiff repeats and re-allege each and every allegation set forth above with the same force and effect as if set forth at length herein.

85. The acts of CITY, P.O. RIVERA and P.O. MONEGRO-SANTOS complained of herein were performed with malice and willful intent and are beyond the bounds of a civilized society, especially here where Defendants knew they did not have just cause from the outset to arrest and detain Plaintiff SHAINA FRAZIER.

86. Plaintiff SHAINA FRAZIER was caused to sustain serious injuries and to suffer loss of liberty, pain, shock, mental anguish, embarrassment, humiliation, anxiety and bodily injury.

87. As a result of the foregoing, Plaintiff SHAINA FRAZIER seeks punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.

TWELFTH CAUSE OF ACTION FOR SHAINA FRAZIER:
FAILURE TO INTERVENE TO PREVENT THE VIOLATION OF PLAINTIFF'S
CIVIL RIGHTS AS AGAINST ALL DEFENDANTS

88. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

89. As a result of the above actions, Defendant CITY, individually and/or vicariously, by and through its agents, servants and /or employees, failed to intervene to prevent or end the

unlawful conduct inflicted upon Plaintiff by Defendants P.O. RIVERA and P.O. MONEGRO-SANTOS.

90. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through their agents, servants, and/or employees, including P.O. RIVERA and P.O. MONEGRO-SANTOS, displayed a deliberate indifference to Plaintiff's right to be free from unreasonable searches and seizures and excessive use of force.

91. As a result of the foregoing, Defendant CITY, individually and/or vicariously by and through its agents servants, and/or employees, including P.O. RIVERA and P.O. MONEGRO-SANTOS, acted intentionally, willfully, maliciously and with reckless disregard for and deliberate indifference to Plaintiff's rights and physical well-being.

92. By reason of the foregoing, Plaintiff sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**THIRTEENTH CAUSE OF ACTION FOR SHAINA FRAZIER:
FOR INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS
AGAINST ALL DEFENDANTS**

93. Plaintiff SHAINA FRAZIER repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

94. The Defendants acted outrageously for their above-stated roles in the wrongful stop, detainment, charging, failing to investigate, failure to adhere to law, rule and regulations known to them, failing to heed Plaintiff's protestations, false arrest, prolonged captivity, intimidation and public humiliation of Plaintiff SHAINA FRAZIER.

95. Said emotional harm was exacerbated by the persistence of Defendants, by maintaining the false claims and criminal charges against Plaintiff SHAINA FRAZIER without any further investigation of the incident. Defendants knew or had reason to know that the criminal

charges against Plaintiff SHAINA FRAZIER were false or without merit, yet they detained and prosecuted Plaintiff with the intention of causing further harm and duress to Plaintiff.

96. Defendants knew that their conduct would cause severe and extreme emotional harm to Plaintiff SHAINA FRAZIER and injury to her good name and reputation.

97. Said harm did in fact occur in this case, in that Plaintiff was debilitated to the point where she still suffers from episodes of anxiety, anger, loss of sleep, and other impingement of the emotional good health.

98. By reason of the foregoing, Plaintiff SHAINA FRAZIER sustained damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

FOURTEENTH CAUSE OF ACTION FOR SHAINA FRAZIER:
PUNITIVE DAMAGES AGAINST ALL DEFENDANTS

99. Plaintiff repeats and re-alleges each and every allegation contained in the paragraphs above with full force and effect as if each were more fully set forth herein.

100. Defendants' acts were reckless, willful, wanton, malicious, oppressive, outrageous, outside the bounds of conduct tolerated in a civil society, without regard for Plaintiff's well-being, and were based on a lack of concern and ill-will towards Plaintiff.

101. Plaintiff SHAINA FRAZIER therefore demands punitive damages in an amount that exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

WHEREFORE, each Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with punitive damages.

Dated: New York, NY
January 3, 2023

Yours, etc.,

THE LAW OFFICES OF ELLIOT S. KAY



BY: ELLIOT S. KAY, ESQ.

Attorney for Plaintiffs

295 Madison Avenue, 12th Floor

New York, NY 10017

(212) 939-7251

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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DESTINY MAYA and SHAINA FRAZIER,

Index No.

Plaintiff

Purchased: 1-3-23

-against-

THE CITY OF NEW YORK,
POLICE OFFICER JOSE RIVERA (shield # 24650),
POLICE OFFICER MARCOS MONEGRO-SANTOS
(shield # 16268),

Defendants

-----X

I, **ELLIOT S. KAY**, an attorney admitted to practice in the courts of New York State, state that I am the attorney of record for the Plaintiffs in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not the Plaintiffs is because the Plaintiffs currently resides outside the county where deponent maintains his office.

I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: New York, NY
January 3, 2023



ELLIOT S. KAY